

each constituted a “division or dependency” of the Church, because those entities were not separately incorporated. *Ibid.*

As a result, the Court of First Instance ordered the “Roman Catholic and Apostolic Church in Puerto Rico” to make payments to the employees in accordance with the pension plan. *Id.*, at 241. Ten days later, the Court issued a second order requiring the Church to deposit \$4.7 million in a court account within 24 hours. The next day, the Court issued a third order, requiring the sheriff to “seize assets and moneys of . . . the Holy Roman Catholic and Apostolic Church, and any of its dependencies, that are located in Puerto Rico.” *Id.*, at 223.

The Puerto Rico Court of Appeals reversed. It held that the “Roman Catholic and Apostolic Church in Puerto Rico” was a “legally nonexistent entity.” *Id.*, at 136. But, the Court concluded, the Archdiocese of San Juan and the Perpetuo Socorro Academy could be ordered to make contribution payments. The Archdiocese enjoyed separate legal personhood as the effective successor to the Roman Catholic Church in Puerto Rico, the entity recognized by the Treaty of Paris. Perpetuo Socorro Academy likewise constituted a separate legal person because it had been incorporated in accordance with Puerto Rico law, even though its registration was not active in 2016, when the orders were issued. The two remaining academies, San Ignacio Academy and San Jose Academy, were part of the same legal entity as “their respective parishes,” but the employees could not obtain relief against the parishes because they had not been named as defendants. *Id.*, at 167.

The Puerto Rico Supreme Court again reversed, reinstating the preliminary injunction issued by the trial court. The Supreme Court first held that the “relationship between Spain, the Catholic Church, and Puerto Rico is *sui generis*, given the particularities of its development and historical context.” *Id.*, at 5. The Court explained that the Treaty

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of Paris recognized the “legal personality” of “the Catholic Church” in Puerto Rico. *Id.*, at 6.

The Puerto Rico Supreme Court further observed that “each entity created that operates separately and with a certain degree of autonomy from the Catholic Church is in reality a fragment of only one entity that possesses legal personality,” at least where the entities have not “independently submitt[ed] to an ordinary incorporation process.” *Id.*, at 13–14 (emphasis deleted). “In other words,” the Court continued, “the entities created as a result of any internal configuration of the Catholic Church,” such as the Archdiocese of San Juan, “are not automatically equivalent to the formation of entities with different and separate legal personalities in the field of Civil Law,” but “are merely indivisible fragments of the legal personality that the Catholic Church has.” *Ibid.* And Perpetuo Socorro Academy was not a registered corporation in 2016, when the plan was terminated. *Id.*, at 16. Therefore, under the Court’s reasoning, the only defendant with separate legal personality, and the only entity that could be ordered to pay the employees’ pensions, was the “Roman Catholic and Apostolic Church in Puerto Rico.” *Id.*, at 2.

Two Justices dissented. Justice Rodríguez Rodríguez criticized the majority for “inappropriately interfer[ing] with the operation of the Catholic Church by imposing on it a legal personality that it does not hold in the field of private law.” *Id.*, at 29. In her view, the Archdiocese of San Juan and the five other dioceses in Puerto Rico each has its own “independent legal personality.” *Id.*, at 52. Justice Colón Pérez likewise determined that, under Puerto Rico law, “each Diocese and the Archdiocese ha[s] its] own legal personality” and that no separate “legal personality” called the “Roman Catholic and Apostolic Church” exists. *Id.*, at 80, 90 (emphasis deleted).

The Archdiocese petitioned this Court for a writ of certiorari. The Archdiocese argues that the Free Exercise and

Establishment Clauses of the First Amendment require courts to defer to “the Church’s own views on how the Church is structured.” Pet. for Cert. 1. Thus, in this case, the courts must follow the Church’s lead in recognizing the separate legal personalities of each diocese and parish in Puerto Rico. The Archdiocese claims that the Puerto Rico Supreme Court decision violated the “religious autonomy doctrine,” which provides: “[W]henver the questions of discipline, or of faith, or ecclesiastical rule, custom, or law have been decided by the highest of these church judicatories to which the matter has been carried, the legal tribunals must accept such decisions as final, and as binding on them, in their application to the case before them.” *Id.*, at 20 (quoting *Watson v. Jones*, 13 Wall. 679, 727 (1872)).

We called for the Solicitor General’s views on the petition. 588 U. S. 904 (2019). The Solicitor General argues that we need not “reach [the Archdiocese’s] broader theory in order to properly dispose of this case,” because a different error warrants vacatur and remand. Brief for United States as *Amicus Curiae* on Pet. for Cert. 13–14 (Brief for United States). Instead of citing “any neutral rule of Puerto Rico law governing corporations, incorporated or unincorporated associations, veil-piercing, joint-and-several liability, or vicarious liability,” the Puerto Rico Supreme Court “relied on a special presumption—seemingly applicable only to the Catholic Church . . .—that all Catholic entities on the Island are ‘merely indivisible fragments of the legal personality that the Catholic Church has.’” *Id.*, at 9 (quoting App. to Pet. for Cert. 14). The Solicitor General contends that the Puerto Rico Supreme Court thus violated the fundamental tenet of the Free Exercise Clause that a government may not “single out an individual religious denomination or religious belief for discriminatory treatment.” Brief for United States 8 (citing *Murphy v. Collier*, 587 U. S. 901 (2019) (KAVANAUGH, J., concurring); *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S.

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520, 524–525 (1993); *Fowler v. Rhode Island*, 345 U.S. 67, 69 (1953)).

We do not reach either argument because we find that the Court of First Instance lacked jurisdiction to issue the payment and seizure orders. On February 6, 2018, after the Supreme Court of Puerto Rico remanded the case to the Court of First Instance to determine the appropriate parties to the preliminary injunction, the Archdiocese removed the case to the United States District Court for the District of Puerto Rico. Notice of Removal in *Acevedo-Feliciano v. Holy Catholic Church*, No. 3:18-cv-01060. The Archdiocese argued that the Trust had filed for Chapter 11 bankruptcy and that this litigation was sufficiently related to the bankruptcy to give rise to federal jurisdiction. *Id.*, at 5–6 (citing 28 U.S.C. §§ 1334(b), 1452). The Bankruptcy Court dismissed the Trust’s bankruptcy proceeding on March 13, 2018. Opinion and Order Granting Motions to Dismiss in *In re Catholic Schools Employee Pension Trust*, No. 18-00108. The Puerto Rico Court of First Instance issued the relevant payment and seizure orders on March 16, March 26, and March 27. App. to Pet. for Cert. 224, 227, 241. But the District Court did not remand the case to the Puerto Rico Court of First Instance until nearly five months later, on August 20, 2018. Order Granting Motion to Remand in *Acevedo-Feliciano v. Archdiocese of San Juan*, No. 3:18-cv-01060.

Once a notice of removal is filed, “the State court shall proceed no further unless and until the case is remanded.” 28 U.S.C. § 1446(d).² The state court “los[es] all jurisdiction over the case, and, being without jurisdiction, its subsequent

²“The laws of the United States relating to . . . removal of causes . . . as between the courts of the United States and the courts of the several States shall govern in such matters and proceedings as between the United States District Court for the District of Puerto Rico and the courts of Puerto Rico.” 48 U.S.C. § 864.

proceedings and judgment [are] not . . . simply erroneous, but absolutely void.” *Kern v. Huidekoper*, 103 U. S. 485, 493 (1881). “Every order thereafter made in that court [is] *coram non judice*,” meaning “not before a judge.” *Steamship Co. v. Tugman*, 106 U. S. 118, 122 (1882); Black’s Law Dictionary 426 (11th ed. 2019). See also 14C C. Wright, A. Miller, E. Cooper, J. Steinman, & M. Kane, Federal Practice and Procedure §3736, pp. 727–729 (2018).

The Court of First Instance issued its payment and seizure orders after the proceeding was removed to federal district court, but before the federal court remanded the proceeding back to the Puerto Rico court. At that time, the Court of First Instance had no jurisdiction over the proceeding. The orders are therefore void.

We note two possible rejoinders. First, the Puerto Rico Court of Appeals suggested that the Archdiocese consented to the Court of First Instance’s jurisdiction by filing motions in that court after removal. But we have held that a removing party’s right to a federal forum becomes “fixed” upon filing of a notice of removal, and that if the removing party’s “right to removal [is] ignored by the State court,” the party may “make defence in that tribunal in every mode recognized by the laws of the State, without forfeiting or impairing, in the slightest degree, its right to a trial” in federal court. *Steamship Co.*, 106 U.S., at 122–123. Such actions do not “restore[]” “the jurisdiction of the State court.” *Id.*, at 122. So, too, the Archdiocese’s motions did not restore jurisdiction to the Court of First Instance.

Second, the District Court remanded the case to the Court of First Instance by way of a *nunc pro tunc* judgment stating that the order “shall be effective as of March 13, 2018,” the date that the Trust’s bankruptcy proceeding was dismissed. *Nunc Pro Tunc* Judgt. in No. 3:18–cv–01060 (Aug. 8, 2018).

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Federal courts may issue *nunc pro tunc* orders, or “now for then” orders, Black’s Law Dictionary, at 1287, to “reflect[] the reality” of what has already occurred, *Missouri v. Jenkins*, 495 U. S. 33, 49 (1990). “Such a decree presupposes a decree allowed, or ordered, but not entered, through inadvertence of the court.” *Cuebas y Arredondo v. Cuebas y Arredondo*, 223 U. S. 376, 390 (1912).

Put colorfully, “[n]unc pro tunc orders are not some Orwellian vehicle for revisionist history—creating ‘facts’ that never occurred in fact.” *United States v. Gillespie*, 666 F. Supp. 1137, 1139 (ND Ill. 1987). Put plainly, the court “cannot make the record what it is not.” *Jenkins*, 495 U. S., at 49.

Nothing occurred in the District Court case on March 13, 2018. See Order Granting Motion to Remand in No. 3:18-cv-01060 (noting, on August 20, 2018, that the motion is “hereby” granted and ordering judgment “accordingly”). March 13 was when the Bankruptcy Court dismissed the Trust’s proceeding and thus the day that the Archdiocese’s argument for federal jurisdiction lost its persuasive force. Even so, the case remained in federal court until that court, on August 20, reached a decision about the motion to remand that was pending before it. The Court of First Instance’s actions in the interim, including the payment and seizure orders, are void.

The Solicitor General agrees that the Court of First Instance lacked jurisdiction but argues that this defect does not prevent us from addressing additional errors, including those asserted under the Free Exercise Clause. That may be correct, given that the Puerto Rico courts do not exercise Article III jurisdiction. But we think the preferable course at this point is to remand the case to the Puerto Rico courts to consider how to proceed in light of the jurisdictional defect we have identified.

The petition for certiorari and the motions for leave to file briefs *amici curiae* are granted, the judgment of the

Puerto Rico Supreme Court is vacated, and the case is remanded for further proceedings not inconsistent with this opinion.

It is so ordered.

JUSTICE ALITO, with whom JUSTICE THOMAS joins, concurring.

I join the opinion of the Court but write separately to note other important issues that may arise on remand.

First, the decision of the Supreme Court of Puerto Rico is based on an erroneous interpretation of this Court's old decision in *Municipality of Ponce v. Roman Catholic Apostolic Church in Porto Rico*, 210 U. S. 296, 323–324 (1908). The main question decided by the Supreme Court of Puerto Rico below was whether the Catholic Church in Puerto Rico is a single entity for civil law purposes or whether any subdivisions, such as dioceses or parishes, or affiliated entities, such as schools and trusts, are separate entities for those purposes. The Supreme Court of Puerto Rico held that *Ponce* decided that in Puerto Rico the Catholic Church is a single entity for purposes of civil liability. That was incorrect.

The question in *Ponce* was whether the Catholic Church or the municipality of Ponce held title to two churches that had been built and maintained during the Spanish colonial era using both private and public funds. The Church sued to establish that it had title, and the municipality argued that the Church could not bring suit because it was not a juridical person. 210 U. S., at 308–309. After considering the Treaty of Paris, Dec. 10, 1898, 30 Stat. 1754, which ended the Spanish-American War, this Court simply held that the Church was a juridical person and thus could bring suit. See 210 U. S., at 310–311, 323–324. This Court did not hold that the Church is a single entity for purposes of civil liability, but that is how the Supreme Court of Puerto Rico interpreted the decision. That court quoted *Ponce's* statement that “[t]he Roman Catholic Church has been recognized as

ALITO, J., concurring

possessing legal personality by the treaty of Paris, and its property rights solemnly safeguarded.’” App. to Pet. for Cert. 7 (quoting 210 U. S., at 323–324). Immediately thereafter it wrote: “Despite this, the intermediate appellate court understood that each division of the Catholic Church in Puerto Rico equals the creation of a different and separate legal entity and did not recognize that legal personality of the Catholic Church.” App. to Pet. for Cert. 8.

This is an incorrect interpretation of this Court’s decision, and it would have been appropriate for us to reverse the decision below on that ground were it not for the jurisdictional issue that the Court addresses. The assets that may be reached by civil plaintiffs based on claims regarding conduct by entities and individuals affiliated in some way with the Catholic Church (or any other religious body) is a difficult and important issue, but at least one thing is clear: This Court’s old decision in *Ponce* did not address that question.

Second, as the Solicitor General notes, the Free Exercise Clause of the First Amendment at a minimum demands that all jurisdictions use neutral rules in determining whether particular entities that are associated in some way with a religious body may be held responsible for debts incurred by other associated entities. See Brief for United States as *Amicus Curiae* on Pet. for Cert. 8–13.

Beyond this lurk more difficult questions, including (1) the degree to which the First Amendment permits civil authorities to question a religious body’s own understanding of its structure and the relationship between associated entities and (2) whether, and if so to what degree, the First Amendment places limits on rules on civil liability that seriously threaten the right of Americans to the free exercise of religion as members of a religious body.

The Court does not reach these issues because of our jurisdictional holding. But they are questions that may well merit our review.

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MONASKY *v.* TAGLIERICERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE SIXTH CIRCUIT

No. 18–935. Argued December 11, 2019—Decided February 25, 2020

The Hague Convention on the Civil Aspects of International Child Abduction (Hague Convention or Convention), implemented in the United States by the International Child Abduction Remedies Act, 22 U.S.C. § 9001 *et seq.*, provides that a child wrongfully removed from her country of “habitual residence” ordinarily must be returned to that country.

Petitioner Monasky, a U.S. citizen, asserts that her Italian husband, respondent Taglieri, became abusive after the couple moved to Italy from the United States. Two months after the birth of the couple’s daughter, A. M. T., in Italy, Monasky fled with the infant to Ohio. Taglieri petitioned the U.S. District Court for the Northern District of Ohio for A. M. T.’s return to Italy under the Convention, pursuant to 22 U.S.C. § 9003(b), on the ground that the child had been wrongfully removed from her country of “habitual residence.” The District Court granted Taglieri’s petition, concluding that the parents’ shared intent was for their daughter to live in Italy. Then two-year-old A. M. T. was returned to Italy. The en banc Sixth Circuit affirmed. Under its precedent, the court first noted, an infant’s habitual residence depends on the parents’ shared intent. It then reviewed the District Court’s habitual-residence determination for clear error and found none. In doing so, the court rejected Monasky’s argument that Italy could not qualify as A. M. T.’s “habitual residence” in the absence of an actual agreement by her parents to raise her there.

Held:

1. A child’s habitual residence depends on the totality of the circumstances specific to the case, not on categorical requirements such as an actual agreement between the parents. Pp. 76–83.

(a) The inquiry begins with the Convention’s text “and the context in which the written words are used.” *Air France v. Saks*, 470 U.S. 392, 397. The Convention does not define “habitual residence,” but, as the Convention’s text and explanatory report indicate, a child habitually resides where she is at home. This fact-driven inquiry must be “sensitive to the unique circumstances of the case and informed by common sense.” *Redmond v. Redmond*, 724 F.3d 729, 744. Acclimation of older children and the intentions and circumstances of caregiving parents are relevant considerations, but no single fact is dispositive across

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all cases. The treaty’s “negotiation and drafting history” corroborates that habitual residence depends on the specific circumstances of the particular case. *Medellín v. Texas*, 552 U. S. 491, 507. This interpretation also aligns with habitual-residence determinations made by other nations party to the Convention. Pp. 76–81.

(b) Monasky’s arguments in favor of an actual-agreement requirement are unpersuasive. While an infant’s “mere physical presence” is not a dispositive indicator of an infant’s habitual residence, a wide range of facts other than an actual agreement, including those indicating that the parents have made their home in a particular place, can enable a trier to determine whether an infant’s residence has the quality of being “habitual.” Nor is adjudicating a dispute over whether an agreement existed a more expeditious way of promoting returns of abducted children and deterring would-be abductors than according courts leeway to consider all the circumstances. Finally, imposing a categorical actual-agreement requirement is unlikely to be an appropriate solution to the serious problem of protecting children born into domestic violence, for it would leave many infants without a habitual residence, and therefore outside the Convention’s domain. Domestic violence should be an issue fully explored in the custody adjudication upon the child’s return. The Convention also has a mechanism for guarding children from the harms of domestic violence: Article 13(b) allows a court to refrain from ordering a child’s return to her habitual residence if “there is a grave risk that [the child’s] return would expose the child to physical or psychological harm or otherwise place the child in an intolerable situation.” Pp. 81–83.

2. A first-instance habitual-residence determination is subject to deferential appellate review for clear error. A trial court’s habitual-residence determination presents a mixed question of law and fact that is heavily fact laden. The determination thus presents a task for fact-finding courts and should be judged on appeal by a clear-error review standard. See *U. S. Bank N. A. v. Village at Lakeridge, LLC*, 583 U. S. 387, 396. There is no “historical tradition” indicating otherwise. *Pierce v. Underwood*, 487 U. S. 552, 558. Clear-error review has a particular virtue in Hague Convention cases: By speeding up appeals, it serves the Convention’s emphasis on expedition. Notably, courts of other treaty partners also review first-instance habitual-residence determinations deferentially. Pp. 83–84.

3. Given the circumstances of this case, it is unnecessary to disturb the judgment below and remand the case to give the lower courts an opportunity to apply the governing totality-of-the-circumstances standard in the first instance. Pp. 85–86.

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907 F. 3d 404, affirmed.

GINSBURG, J., delivered the opinion of the Court, in which ROBERTS, C. J., and BREYER, SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined, and in which THOMAS, J., joined as to Parts I, III, and IV. THOMAS, J., *post*, p. 86, and ALITO, J., *post*, p. 91, filed opinions concurring in part and concurring in the judgment.

Amir C. Tayrani argued the cause for petitioner. With him on the briefs were *Melanie L. Katsur*, *Kellam M. Conover*, *Shannon U. Han*, *Joan S. Meier*, *Andrew A. Zashin*, *Christopher R. Reynolds*, and *Amy M. Keating*.

Sopan Joshi argued the cause for the United States as *amicus curiae* urging vacatur. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Solicitor General Kneedler*, *Sharon Swingle*, and *Lewis S. Yelin*.

Andrew J. Pincus argued the cause for respondent. With him on the brief were *Charles A. Rothfeld*, *Paul W. Hughes*, *Michael B. Kimberly*, *Eugene R. Fidell*, *John D. Sayre*, and *Amy Berman Hamilton*.*

JUSTICE GINSBURG delivered the opinion of the Court.

Under the Hague Convention on the Civil Aspects of International Child Abduction (Hague Convention or Convention), Oct. 25, 1980, T. I. A. S. No. 11670, S. Treaty Doc. No. 99–11 (Treaty Doc.), a child wrongfully removed from her country of “habitual residence” ordinarily must be re-

*Briefs of *amici curiae* urging reversal were filed for the Frederick K. Cox International Law Center by *David A. Carney*, *Michael P. Scharf*, *Stephen J. Petras, Jr.*, *Andrew S. Pollis*, and *Aleksandar Cuic*; and for Sanctuary for Families et al. by *Michael A. F. Johnson* and *Dirk C. Phillips*.

Briefs of *amici curiae* urging affirmance were filed for the American Academy of Matrimonial Lawyers by *Peter M. Walzer*; and for the International Academy of Family Lawyers by *Edwin Freedman*, *Dana Prescott*, and *Richard Min*.

Kelly A. Powers, *Stephen J. Cullen*, and *Leah M. Hauser* filed a brief of *amici curiae* for the Reunite International Child Abduction Centre.

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turned to that country. This case concerns the standard for determining a child’s “habitual residence” and the standard for reviewing that determination on appeal. The petitioner, Michelle Monasky, is a U. S. citizen who brought her infant daughter, A. M. T., to the United States from Italy after her Italian husband, Domenico Taglieri, became abusive to Monasky. Taglieri successfully petitioned the District Court for A. M. T.’s return to Italy under the Convention, and the Court of Appeals affirmed the District Court’s order.

Monasky assails the District Court’s determination that Italy was A. M. T.’s habitual residence. First of the questions presented: Could Italy qualify as A. M. T.’s “habitual residence” in the absence of an actual agreement by her parents to raise her there? The second question: Should the Court of Appeals have reviewed the District Court’s habitual-residence determination independently rather than deferentially? In accord with decisions of the courts of other countries party to the Convention, we hold that a child’s habitual residence depends on the totality of the circumstances specific to the case. An actual agreement between the parents is not necessary to establish an infant’s habitual residence. We further hold that a first-instance habitual-residence determination is subject to deferential appellate review for clear error.

I

A

The Hague Conference on Private International Law adopted the Hague Convention in 1980 “[t]o address the problem of international child abductions during domestic disputes.” *Lozano v. Montoya Alvarez*, 572 U. S. 1, 4 (2014) (internal quotation marks omitted). One hundred one countries, including the United States and Italy, are Convention signatories. Hague Conference on Private Int’l Law, Convention of 25 Oct. 1980 on the Civil Aspects of Int’l Child Abduction, Status Table, <https://www.hcch.net/en/>

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instruments/conventions/status-table/?cid=24. The International Child Abduction Remedies Act (ICARA), 102 Stat. 437, as amended, 22 U.S.C. § 9001 *et seq.*, implements our Nation's obligations under the Convention. It is the Convention's core premise that "the interests of children . . . in matters relating to their custody" are best served when custody decisions are made in the child's country of "habitual residence." Convention Preamble, Treaty Doc., at 7; see *Abbott v. Abbott*, 560 U.S. 1, 20 (2010).

To that end, the Convention ordinarily requires the prompt return of a child wrongfully removed or retained away from the country in which she habitually resides. Art. 12, Treaty Doc., at 9 (cross-referencing Art. 3, *id.*, at 7). The removal or retention is wrongful if done in violation of the custody laws of the child's habitual residence. Art. 3, *ibid.* The Convention recognizes certain exceptions to the return obligation. Prime among them, a child's return is not in order if the return would place her at a "grave risk" of harm or otherwise in "an intolerable situation." Art. 13(b), *id.*, at 10.

The Convention's return requirement is a "provisional" remedy that fixes the forum for custody proceedings. Silberman, *Interpreting the Hague Abduction Convention: In Search of a Global Jurisprudence*, 38 U. C. D. L. Rev. 1049, 1054 (2005). Upon the child's return, the custody adjudication will proceed in that forum. See *ibid.* To avoid delaying the custody proceeding, the Convention instructs contracting states to "use the most expeditious procedures available" to return the child to her habitual residence. Art. 2, Treaty Doc., at 7. See also Art. 11, *id.*, at 9 (prescribing six weeks as normal time for return-order decisions).

B

In 2011, Monasky and Taglieri were married in the United States. Two years later, they relocated to Italy, where they both found work. Neither then had definite plans to return

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to the United States. During their first year in Italy, Monasky and Taglieri lived together in Milan. But the marriage soon deteriorated. Taglieri became physically abusive, Monasky asserts, and “forced himself upon [her] multiple times.” 907 F. 3d 404, 406 (CA6 2018) (en banc).

About a year after their move to Italy, in May 2014, Monasky became pregnant. Taglieri thereafter took up new employment in the town of Lugo, while Monasky, who did not speak Italian, remained about three hours away in Milan. The long-distance separation and a difficult pregnancy further strained their marriage. Monasky looked into returning to the United States. She applied for jobs there, asked about U. S. divorce lawyers, and obtained cost information from moving companies. At the same time, though, she and Taglieri made preparations to care for their expected child in Italy. They inquired about childcare options there, made purchases needed for their baby to live in Italy, and found a larger apartment in a Milan suburb.

Their daughter, A. M. T., was born in February 2015. Shortly thereafter, Monasky told Taglieri that she wanted to divorce him, a matter they had previously broached, and that she anticipated returning to the United States. Later, however, she agreed to join Taglieri, together with A. M. T., in Lugo. The parties dispute whether they reconciled while together in that town.

On March 31, 2015, after yet another heated argument, Monasky fled with her daughter to the Italian police and sought shelter in a safe house. In a written statement to the police, Monasky alleged that Taglieri had abused her and that she feared for her life. Two weeks later, in April 2015, Monasky and two-month-old A. M. T. left Italy for Ohio, where they moved in with Monasky’s parents.

Taglieri sought recourse in the courts. With Monasky absent from the proceedings, an Italian court granted Taglieri’s request to terminate Monasky’s parental rights, discrediting her statement to the Italian police. App. 183. In the

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United States, on May 15, 2015, Taglieri petitioned the U. S. District Court for the Northern District of Ohio for the return of A. M. T. to Italy under the Hague Convention, pursuant to 22 U. S. C. § 9003(b), on the ground that Italy was her habitual residence.

The District Court granted Taglieri’s petition after a four-day bench trial. Sixth Circuit precedent at the time, the District Court observed, instructed courts that a child habitually resides where the child has become “acclimatiz[ed]” to her surroundings. App. to Pet. for Cert. 85a (quoting *Robert v. Tesson*, 507 F. 3d 981, 993 (CA6 2007)). An infant, however, is “too young” to acclimate to her surroundings. App. to Pet. for Cert. 87a. The District Court therefore proceeded on the assumption that “the shared intent of the [parents] is relevant in determining the habitual residence of an infant,” though “particular facts and circumstances . . . might necessitate the consideration [of] other factors.” *Id.*, at 97a. The shared intention of A. M. T.’s parents, the District Court found, was for their daughter to live in Italy, where the parents had established a marital home “with no definitive plan to return to the United States.” *Ibid.* Even if Monasky could change A. M. T.’s habitual residence unilaterally by making plans to raise A. M. T. away from Italy, the District Court added, the evidence on that score indicated that, until the day she fled her husband, Monasky had “no definitive plans” to raise A. M. T. in the United States. *Id.*, at 98a. In line with its findings, the District Court ordered A. M. T.’s prompt return to Italy.

The Sixth Circuit and this Court denied Monasky’s requests for a stay of the return order pending appeal. 907 F. 3d, at 407. In December 2016, A. M. T., nearly two years old, was returned to Italy and placed in her father’s care.¹

¹Taglieri represents that “[a]n order issued by the Italian court in December 2018 awarded legal custody of A. M. T., on an interim basis, to the Lugo municipality . . . with placement at [Taglieri’s] residence; and provided that mother-daughter visits would continue under the plan pre-

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In the United States, Monasky’s appeal of the District Court’s return order proceeded. See *Chafin v. Chafin*, 568 U.S. 165, 180 (2013) (the return of a child under the Hague Convention does not moot an appeal of the return order). A divided three-judge panel of the Sixth Circuit affirmed the District Court’s order, and a divided en banc court adhered to that disposition.

The en banc majority noted first that, after the District Court’s decision, a precedential Sixth Circuit opinion, *Ahmed v. Ahmed*, 867 F.3d 682 (2017), established that, as the District Court had assumed, an infant’s habitual residence depends on “shared parental intent.” 907 F.3d, at 408 (quoting *Ahmed*, 867 F.3d, at 690). The en banc majority then reviewed the District Court’s habitual-residence determination for clear error and found none. Sustaining the District Court’s determination that A. M. T.’s habitual residence was Italy, the majority rejected Monasky’s argument that the District Court erred because “she and Taglieri never had a ‘meeting of the minds’ about their child’s future home.” 907 F.3d, at 410.

No member of the en banc court disagreed with the majority’s rejection of Monasky’s proposed actual-agreement requirement. Nor did any judge maintain that Italy was not A. M. T.’s habitual residence. Judge Boggs wrote a concurring opinion adhering to the reasoning of his three-judge panel majority opinion: “[A]bsent unusual circumstances, where a child has resided exclusively in a single country, especially with both parents, that country is the child’s habitual residence.” *Id.*, at 411. The dissenters urged two discrete objections. Some would have reviewed the District Court’s habitual-residence determination *de novo*. See *id.*, at 419 (opinion of Moore, J.). All would have remanded for the District Court to reconsider A. M. T.’s habitual residence in light of the Sixth Circuit’s *Ahmed* precedent. See 907

scribed in a court order issued earlier in 2018.” Brief for Respondent 56, n. 13.

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F. 3d, at 419–420; *id.*, at 421–422 (opinion of Gibbons, J.); *id.*, at 423 (opinion of Stranch, J.).

We granted certiorari to clarify the standard for habitual residence, an important question of federal and international law, in view of differences in emphasis among the Courts of Appeals. 587 U. S. 1051 (2019). Compare, *e. g.*, 907 F. 3d, at 407 (case below) (describing inquiry into the child’s acclimatization as the “primary” approach), with, *e. g.*, *Mozes v. Mozes*, 239 F. 3d 1067, 1073–1081 (CA9 2001) (placing greater weight on the shared intentions of the parents), with, *e. g.*, *Redmond v. Redmond*, 724 F. 3d 729, 746 (CA7 2013) (rejecting “rigid rules, formulas, or presumptions”). Certiorari was further warranted to resolve a division in Courts of Appeals over the appropriate standard of appellate review. Compare, *e. g.*, 907 F. 3d, at 408–409 (case below) (clear error), with, *e. g.*, *Mozes*, 239 F. 3d, at 1073 (*de novo*).

II

The first question presented concerns the standard for habitual residence: Is an actual agreement between the parents on where to raise their child categorically necessary to establish an infant’s habitual residence? We hold that the determination of habitual residence does not turn on the existence of an actual agreement.

A

We begin with “the text of the treaty and the context in which the written words are used.” *Air France v. Saks*, 470 U. S. 392, 397 (1985). The Hague Convention does not define the term “habitual residence.” A child “resides” where she lives. See Black’s Law Dictionary 1176 (5th ed. 1979). Her residence in a particular country can be deemed “habitual,” however, only when her residence there is more than transitory. “Habitual” implies “[c]ustomary, usual, of the nature of a habit.” *Id.*, at 640. The Hague Convention’s text alone does not definitively tell us what makes a child’s residence sufficiently enduring to be deemed “habitual.” It surely does

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not say that habitual residence depends on an actual agreement between a child's parents. But the term "habitual" does suggest a fact-sensitive inquiry, not a categorical one.

The Convention's explanatory report confirms what the Convention's text suggests. The report informs that habitual residence is a concept "well-established . . . in the Hague Conference." 1980 Conférence de La Haye de droit international privé, *Enlèvement d'enfants*, E. Pérez-Vera, Explanatory Report in 3 Actes et documents de la Quatorzième session, p. 445, ¶66 (1982) (Pérez-Vera).² The report refers to a child's habitual residence in fact-focused terms: "the family and social environment in which [the child's] life has developed." *Id.*, at 428, ¶11. What makes a child's residence "habitual" is therefore "some degree of integration by the child in a social and family environment." *OL v. PQ*, 2017 E. C. R. No. C-111/17, ¶42 (Judgt. of June 8); accord *Office of the Children's Lawyer v. Balev*, [2018] 1 S. C. R. 398, 421, ¶43, 424 D. L. R. (4th) 391, 410, ¶43 (Can.); *A v. A*, [2014] A. C., ¶54 (2013) (U. K.). Accordingly, while Federal Courts of Appeals have diverged, if only in emphasis, in the standards they use to locate a child's habitual residence, see *supra*, at 76, they share a "common" understanding: The place where a child is at home, at the time of removal or retention, ranks as the child's habitual residence. *Karkkainen v. Kovalchuk*, 445 F. 3d 280, 291 (CA3 2006).

² According to an analysis provided by the Department of State to the Senate during the ratification process, the "explanatory report is recognized by the [Hague] Conference as the official history and commentary on the Convention and is a source of background on the meaning of the provisions of the Convention." Hague International Child Abduction Convention; Text and Legal Analysis, 51 Fed. Reg. 10503 (1986). The explanatory report notes, however, that "it has not been approved by the Conference, and it is possible that, despite the Rapporteur's [*sic*] efforts to remain objective, certain passages reflect a viewpoint which is in part subjective." Pérez-Vera 427-428, ¶8. See *Abbott v. Abbott*, 560 U.S. 1, 19 (2010) ("We need not decide whether this Report should be given greater weight than a scholarly commentary.").

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Because locating a child's home is a fact-driven inquiry, courts must be "sensitive to the unique circumstances of the case and informed by common sense." *Redmond*, 724 F. 3d, at 744. For older children capable of acclimating to their surroundings, courts have long recognized, facts indicating acclimatization will be highly relevant.³ Because children, especially those too young or otherwise unable to acclimate, depend on their parents as caregivers, the intentions and circumstances of caregiving parents are relevant considerations. No single fact, however, is dispositive across all cases. Common sense suggests that some cases will be straightforward: Where a child has lived in one place with her family indefinitely, that place is likely to be her habitual residence. But suppose, for instance, that an infant lived in a country only because a caregiving parent had been coerced into remaining there. Those circumstances should figure in the calculus. See *Karkkainen*, 445 F. 3d, at 291 ("The inquiry into a child's habitual residence is a fact-intensive determination that cannot be reduced to a predetermined formula and necessarily varies with the circumstances of each case.").

The treaty's "negotiation and drafting history" corroborates that a child's habitual residence depends on the specific circumstances of the particular case. *Medellín v. Texas*, 552 U.S. 491, 507 (2008) (noting that such history may aid treaty interpretation). The Convention's explanatory report states that the Hague Conference regarded habitual residence as "a question of pure fact, differing in that respect

³ Facts courts have considered include: "a change in geography combined with the passage of an appreciable period of time," "age of the child," "immigration status of child and parent," "academic activities," "social engagements," "participation in sports programs and excursions," "meaningful connections with the people and places in the child's new country," "language proficiency," and "location of personal belongings." Federal Judicial Center, J. Garbolino, *The 1980 Hague Convention on the Civil Aspects of International Child Abduction: A Guide for Judges* 67–68 (2d ed. 2015).

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from domicile.” Pérez-Vera 445, ¶66. The Conference deliberately chose “habitual residence” for its factual character, making it the foundation for the Convention’s return remedy in lieu of formal legal concepts like domicile and nationality. See Anton, *The Hague Convention on International Child Abduction*, 30 *Int’l & Comp. L. Q.* 537, 544 (1981) (history of the Convention authored by the drafting commission’s chairman). That choice is instructive. The signatory nations sought to afford courts charged with determining a child’s habitual residence “maximum flexibility” to respond to the particular circumstances of each case. P. Beaumont & P. McEleavy, *The Hague Convention on International Child Abduction* 89–90 (1999) (Beaumont & McEleavy). The aim: to ensure that custody is adjudicated in what is presumptively the most appropriate forum—the country where the child is at home.

Our conclusion that a child’s habitual residence depends on the particular circumstances of each case is bolstered by the views of our treaty partners. ICARA expressly recognizes “the need for uniform international interpretation of the Convention.” 22 U. S. C. § 9001(b)(3)(B). See *Lozano*, 572 U. S., at 13; *Abbott*, 560 U. S., at 16. The understanding that the opinions of our sister signatories to a treaty are due “considerable weight,” this Court has said, has “special force” in Hague Convention cases. *Ibid.* (quoting *El Al Israel Airlines, Ltd. v. Tsui Yuan Tseng*, 525 U. S. 155, 176 (1999), in turn quoting *Air France*, 470 U. S., at 404). The “clear trend” among our treaty partners is to treat the determination of habitual residence as a fact-driven inquiry into the particular circumstances of the case. *Balev*, [2018] 1 S. C. R., at 423, ¶50, 424 D. L. R. (4th), at 411, ¶50.

Lady Hale wrote for the Supreme Court of the United Kingdom: A child’s habitual residence “depends on numerous factors . . . with the purposes and intentions of the parents being merely one of the relevant factors. . . . The essentially factual and individual nature of the inquiry should not be